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Is Mediation Confidential in Pennsylvania?

For many people considering family law mediation, privacy is one of the first concerns. Will a proposal made in mediation appear in court later? Can the mediator be required to testify? What happens to financial records exchanged during the process?

MEDIATION & PRIVACY

Is Mediation Confidential in Pennsylvania?

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The short answer is that mediation in Pennsylvania is generally protected by a broad statutory privilege, but the protection is not absolute. Understanding what the law covers and what it does not can help you participate more thoughtfully and avoid preventable surprises.

Pennsylvania's general rule: mediation communications and documents are privileged

[Section 5949 of Pennsylvania's Judicial Code](#) provides the starting point. With limited exceptions, mediation communications and mediation documents are privileged. They generally cannot be compelled through discovery or another legal process, and they are not admissible in judicial, administrative, or arbitration proceedings.

The statute defines those categories broadly. A protected "mediation communication" may be verbal or nonverbal, oral or written. It can include communications among a party, the mediator, a mediation program, or another person present to further the mediation process. The protection can also reach communications outside a formal session when they are made to or by the mediator or mediation program.

A "mediation document" includes written material prepared for, during, or because of the mediation, such as mediation statements, notes, files, records, and work product. Pennsylvania law also says mediation begins at the time of initial contact with a mediator or mediation program, rather than only when everyone sits down for the first session.

In practical terms, this framework is designed to allow participants to explore possible solutions without assuming that every good proposal or concession will later become evidence against them.

Confidential does not mean that every document becomes protected

One of the most important limits is the independent document rule. A record that already existed outside mediation does not become privileged merely because someone takes it to a mediation session or sends it to the mediator.

For example, bank statements, tax returns, text messages, appraisals, business records, and existing emails may still be discoverable or admissible if the ordinary rules allow it. A mediation only summary prepared from those materials may be protected, but the underlying records do not disappear from the case.

This distinction matters in divorce, support, custody, and equitable distribution disputes. Parties should continue to preserve relevant records and comply with applicable disclosure obligations. Mediation confidentiality is not a tool for concealing assets, destroying evidence, or avoiding a court order.

The law contains specific exceptions

Pennsylvania's statute identifies several circumstances in which the mediation privilege does not apply:

- **A signed settlement document.** A written agreement signed by the parties may be introduced in a proceeding to enforce the settlement it expresses, unless the document states that it is unenforceable or is not intended to be legally binding.
- **Certain threats or harmful conduct relevant to a criminal matter.** The statute excludes a threat of bodily injury, a threat of felony level property damage, and conduct during mediation that causes direct bodily injury when the evidence is relevant in a criminal matter.
- **A qualifying fraudulent communication.** A fraudulent communication may be used when it is relevant to an action to enforce or set aside a mediated agreement that resulted from that communication.
- **Documents that existed independently.** As discussed above, preexisting documents are not protected merely because they are used in mediation.

The fraud exception is narrow. In a [2025 Pennsylvania Superior Court family law decision](#), the court declined to permit a broad search through a mediator's notes and recollections when the requesting party had not identified the type of fraudulent communication required by the statute. The decision is non precedential, but it illustrates why the exception should not be treated as automatic permission to open the entire mediation record.

A settlement reached in mediation may still be binding

Confidentiality and enforceability are different questions. A discussion can be privileged while a resulting signed settlement document can be used to enforce the agreement. That is why labels such as "draft," "term sheet," or "subject to a later agreement" should never be assumed to settle the issue by themselves.

Before signing anything, ask whether the document is intended to create immediate legal obligations and what remains unresolved. For court established or court ordered custody mediation, Pennsylvania's current rule on the [duties and role of a mediator](#) requires the mediator to explain that the mediator does not represent either party, that mediation is not a substitute for independent legal advice, and that parties should obtain legal help when drafting or reviewing an agreement.

That independent review can be especially important when an agreement addresses custody schedules, support, retirement accounts, real estate, business interests, taxes, or other rights with long term consequences.

Is the privilege waivable?

Pennsylvania's appellate law on implied waiver is still developing. On July 15, 2026, the Pennsylvania Supreme Court [agreed to review whether the statutory mediation privilege can be implicitly waived](#) when protected material has been disclosed and used in pending litigation and no prompt remedial action was taken. The order grants review of that question; it does not itself answer it.

While that issue remains pending, the safer practical approach is to treat mediation material carefully. Follow the mediation agreement, avoid forwarding confidential communications without advice, and raise an accidental

disclosure promptly with counsel. The statute primarily addresses privilege, compelled disclosure, and admissibility; a mediation agreement or a court connected program may impose additional confidentiality terms.

Questions to ask before mediation

Before the process begins, consider asking:

- Who will attend, and may anyone else receive mediation communications?
- What written confidentiality agreement or court program rules apply?
- Which documents were created for mediation, and which already existed independently?
- Will any proposal or term sheet be nonbinding unless a final agreement is signed?
- When should each party obtain independent legal review?

Clear answers at the outset can reduce confusion and allow the participants to focus on informed problem solving.

Talk with BOK Law & Mediation Services

If you are considering mediation for a divorce, custody, support, property division, or other family law matter in western Pennsylvania, BOK Law & Mediation Services can help you understand how the process may apply to your circumstances and prepare for the decisions ahead. [Contact BOK Law & Mediation Services](#) to discuss your situation.

This article is for general informational purposes only. It is not legal advice, does not create an attorney client relationship, and may not reflect later changes in the law. Legal outcomes depend on the specific facts and governing rules. Consult a qualified Pennsylvania attorney about your circumstances.

Sources

- [42 Pa.C.S. § 5949 Confidential mediation communications and documents](#) Supports the general privilege, definitions, statutory exceptions, and independent document rule.
- [Pennsylvania Rule of Civil Procedure 1940.5 Duties and role of the mediator](#) Supports the mediator's neutral role and the need for independent legal advice and agreement review in court established or court ordered custody mediation.
- [Pennsylvania Superior Court memorandum, filed May 2, 2025](#) Illustrates the narrow application of the fraud exception in a family law dispute; the decision is non precedential.
- [Pennsylvania Supreme Court order, July 15, 2026](#) Confirms that the Court granted review of the implied waiver question; no merits ruling is stated in the order.
- [BOK Law & Mediation Services Contact](#) Provides the firm's current consultation contact route.